

STATE OF NEW YORK

9149--B

IN SENATE

February 6, 2026

Introduced by Sen. CLEARE -- read twice and ordered printed, and when printed to be committed to the Committee on Transportation -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the public authorities law, in relation to time-delay mechanisms on emergency exit gates

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. The public authorities law is amended by adding a new
2 section 1279-j to read as follows:

3 § 1279-j. Time-delay emergency mechanisms. 1. The authority may oper-
4 ate time-delay egress mechanisms on emergency exit gates at subway
5 stations operated by the authority; provided, however, that such mech-
6 anisms shall only be utilized at stations where personnel are physically
7 present and available to respond to emergencies or operational issues,
8 or during a temporary interruption as set forth in subdivision two of
9 this section.

10 2. In the event personnel become temporarily unavailable due to shift
11 changes, breaks, or other temporary interruptions, the authority may
12 continue operation of any time-delay egress mechanism for a period not
13 to exceed two hours. Upon expiration of such period, the authority shall
14 deactivate any such mechanism until personnel are physically present and
15 available to respond to emergencies or operational issues.

16 3. Nothing in this section shall be construed to require the authority
17 to staff any station. However, where the authority elects not to provide
18 personnel at a station, any time-delay egress mechanism subject to this
19 section shall be deactivated.

20 4. This section shall apply only to emergency exit gates utilizing
21 time-delay egress mechanisms and may not apply to fare control gates or
22 other gates that open upon payment of fare or valid fare media.

23 5. Nothing in this section shall be construed to conflict with appli-
24 cable federal, state, or local building code, fire safety, or accessi-
25 bility requirements.

26 § 2. This act shall take effect on the ninetieth day after it shall
27 have become a law.

EXPLANATION--Matter in italics (underscored) is new; matter in brackets
[] is old law to be omitted.

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